



CHAPTER clvi.

An Act to confer further powers on the Caledonian Railway A.D. 1905.

Company in relation to their undertaking to authorise them or the Lanarkshire and Dumbartonshire Railway Company to construct a railway to connect the Lanarkshire and Dumbartonshire Railway with the Clydebank Dock Branch of the North British Railway Company and to acquire a joint interest in such dock branch to authorise the Callander and Oban Railway Company to raise additional capital and to transfer to them the Leith Mhor Pier and for other purposes. [4th August 1905.]

WHEREAS it is expedient that the Caledonian Railway Company (herein-after called "the Company") should be authorised to double the portion of their main line and to construct the bridge widening and to acquire the lands in the counties of Stirling and Aberdeen herein-after respectively described :

And whereas by the North British Railway (General Powers) Order 1903 the North British Railway Company (herein-after called "the North British Company") were authorised to make (amongst others) a railway in that Order called Railway No. 7 and by section 13 of the Order it is provided that in the event of the Lanarkshire and Dumbartonshire Railway Company (herein-after called "the Dumbartonshire Company") or the Company applying at any time or from time to time to the Secretary for Scotland within three years from the seventeenth December nineteen hundred and three for a Provisional Order to authorise the construction of a line of railway from a point on the railway of the Dumbartonshire

A.D. 1905. — Company between the Scotstoun and Yoker Stations of that railway to pass over the Dumbarton Road and to form a junction with the said Railway No. 7 at a point thereon not more than fifty yards northwards from Dumbarton Road and also to authorise and require the transfer to the Dumbartonshire Company or the Company as the case might be by the North British Company of a joint and equal interest in the portion of the said Railway No. 7 from the said point of junction to the point where the said Railway No. 7 enters the property of the Trustees of the Clyde Navigation on the west side of the Green Road at Yoker it should not be lawful for the North British Company to oppose any application by the Dumbartonshire Company or the Company as the case might be for such a Provisional Order except for the purpose of securing the insertion therein of proper provisions in respect to the said junction or junctions with Railway No. 7 and for effecting the other objects of that section and that any such Provisional Order should provide—

- (A) That the Dumbartonshire Company or the Company as the case might be should pay to the North British Company one half of the total cost to the North British Company of the said portion of Railway No. 7 including interest at four per cent. per annum from the date of disbursement ;
- (B) That the whole signalling required in consequence of or in connexion with the said junction or junctions with Railway No. 7 should be deemed to be part of the said portion of Railway No. 7 and the cost thereof should be included in the cost of the said portion ;
- (C) That in the event of Railway No. 7 being extended into the property of the said Trustees of the Clyde Navigation beyond the west side of the said Green Road the Dumbartonshire Company or the Company as the case might be should also be entitled to acquire a joint and equal interest in such extended portion subject to payment of one half of its cost including interest as aforesaid ;
- (D) That the said portion of Railway No. 7 including such extended portion if made should be used by the North British Company and the Dumbartonshire Company including any company working their railway or the Company as the case might be as

their own proper railway and undertaking free of all A.D. 1905.
tolls rates fares and charges as between the owning
companies ;

and by the same section other provisions were made as to the construction of the said portion of Railway No. 7 and any extended portion thereof and for the settlement of differences under the said section by arbitration :

And whereas it is expedient that powers should be granted to enable the Company or the Dumbartonshire Company to construct the railway in the parish and county of Renfrew herein-after described so as to form a line of railway from the Lanarkshire and Dumbartonshire Railway to join the said Railway No. 7 and that such provisions should be made as are contained in this Act for the transfer to the Company or the Dumbartonshire Company of a joint and equal interest in the said portion of Railway No. 7 and any extended portion thereof :

And whereas it is expedient that the periods limited for the purchase of lands for and for the completion of the several railways and works herein-after mentioned should be extended :

And whereas the Callander and Oban Railway Company (herein-after called "the Oban Company") have agreed with the Quarrier Company Limited for the acquisition by the Oban Company of the Leitir Mhor Pier undertaking of the Quarrier Company Limited authorised by the Leitir Mhor Pier Order 1901 and it is expedient that such undertaking should be transferred to the Oban Company :

And whereas it is expedient that the Company the Dumbartonshire Company and the Oban Company should respectively be authorised to raise additional money for the purposes of this Act and that the Oban Company should also be empowered to raise money to meet expenditure on works for which their authorised capital is insufficient and that the Company should be authorised to subscribe further moneys towards the undertakings of the Dumbartonshire Company and the Oban Company respectively :

And whereas it is expedient that the other powers and provisions in this Act contained should be conferred on or made in relation to the before-mentioned companies and their undertakings respectively :

And whereas plans and sections relating to the works authorised by this Act and plans of the lands which may be

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taken under the powers of this Act and books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the principal sheriff clerks of the counties of Stirling Renfrew and Aberdeen and are herein-after referred to as the deposited plans sections and books of reference:

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited for all purposes as the Caledonian Railway Act 1905.

Incorporation of Acts.

2. The Lands Clauses Acts the Railways Clauses Consolidation (Scotland) Act 1845 Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863 the clauses and provisions of the Companies Clauses Consolidation (Scotland) Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends; and

The giving of notices;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating

to debenture stock) of the Companies Clauses Act 1863 as amended by any subsequent Act are (except where and as expressly varied by this Act) incorporated with and form part of this Act. All the provisions of the Companies Clauses Consolidation (Scotland) Act 1845 so incorporated with this Act which relate to stock into which shares in the capital of a company have been converted or consolidated shall apply to stock which is by this Act authorised to be issued and to the holders thereof.

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3. In this Act unless there be something in the subject or context repugnant to such construction—

Interpretation.

The several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings;

The expression "the Two Companies" means the Company and the Dumbartonshire Company;

The expression "the Three Companies" means the Company the Dumbartonshire Company and the Oban Company;

The expression "the Order of 1903" means the North British Railway (General Powers) Order 1903 confirmed by the North British Railway (General Powers) Order Confirmation Act 1903;

The expression "the Order of 1901" means the Leitir Mhor Pier Order 1901 confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1901:

In the Railways Clauses Consolidation (Scotland) Act 1845 and Part I. of the Railways Clauses Act 1863 incorporated with this Act—

The expression "the railway" means the railways by this Act authorised or either of them;

The expressions "schoolmasters of the several parishes" and "schoolmasters" mean as regards any lands in a burgh the town clerk of such burgh and as regards any lands in a parish (outside a burgh) the clerk to the parish council of such parish:

In all the Acts wholly or partially incorporated with this Act—

The expressions "the Company" "the undertakers" and "the promoters of the undertaking" and other like expressions mean the Company the Dumbartonshire Company or the Oban Company as the case may require.

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Power to
Company to
make rail-
way &c.

4. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway and works in the counties of Stirling and Aberdeen herein-after described with all proper stations sidings junctions roads approaches and other works and conveniences in connexion therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes (that is to say):—

(1) A railway (in this Act called Railway No. 1) (three miles four furlongs three chains in length) being a doubling of a portion of the Company's main line between Carlisle and Aberdeen in the parish of Falkirk commencing by a junction with the Company's main line at a point six hundred and forty yards or thereabouts measured in a westerly direction from the centre of the culvert carrying the said main line over the Skipperton Burn and terminating by a junction with the said main line at a point fifteen yards or thereabouts measured in a southerly direction from the centre of the bridge at Carmuir carrying the said main line over the public road from Kilsyth to Falkirk:

(2) A widening on either side thereof of the bridge carrying the Company's main line and sidings over Polmuir Road at or near Ferryhill Junction in the city and royal burgh of Aberdeen.

Tolls &c. on
Railway
No. 1.

5. Railway No. 1 shall for the purposes of tolls rates and charges and all other purposes be part of the undertaking of the Company.

Power for
Company to
acquire cer-
tain lands.

6. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company may enter upon take and use for the purposes of their undertaking the lands herein-after described and delineated on the deposited plans and described in the deposited books of reference (that is to say):—

(A) Certain lands in the city and royal burgh of Aberdeen and county of Aberdeen at or near Ferryhill Junction adjoining the western side of the Company's locomotive depôt and extending along the southern side of Polmuir Road for a distance of about one hundred and thirteen yards:

- (B) Certain lands on either side of the Company's railway in the parish of St. Ninians in the county of Stirling lying between the road from St. Ninians to Kerse Mills on the north and the Bannock Burn on the south. A.D. 1905.

7. The Company may without providing substitutes therefor stop up the footpath in and through the properties numbered on the deposited plans 23 24 and 25 in the parish of Falkirk and the footpaths and level crossings and approaches thereto in over or across the lands (B) mentioned in the last preceding section and across any portion of the Company's railway bounded by such lands and all rights of way or servitudes in over or across the same shall thereupon be extinguished. Provided that the Company shall make full compensation to all persons who may be injuriously affected by reason of any private rights of way or servitudes being extinguished by virtue of this section and such compensation shall (if not agreed) be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Stopping up
of footpaths
&c.

8. Subject to the provisions of this Act the Company or the Dumbartonshire Company with the consent in writing of the Company under their seal may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway in the county of Renfrew herein-after described with all proper stations sidings junctions roads approaches and other works and conveniences in connexion therewith and may enter upon take and use such of the lands delineated on the said plans and described in the deposited books of reference as may be required for those purposes (that is to say):— Power to
make Rail-
way No. 2.

A railway (in this Act called "Railway No. 2") (1 mile 0 furlongs 1·5 chains in length) wholly in the parish of Renfrew commencing by a junction with the Lanarkshire and Dumbartonshire railway at a point thereon two hundred and sixty-four yards or thereabouts measured in a south-easterly direction from the eastern end of the station platform buildings of Scotstoun West Station and terminating by a junction with Railway No. 7 authorised by the Order of 1903 (now in course of construction) at a point thereon north of Dumbarton Road about twenty-two yards measured in a north-easterly direction from

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the centre of that road at a point thereon about one hundred and ninety-five yards measured in a north-westerly direction from the junction of Pollock Street Yoker with the Dumbarton Road.

Tolls &c. on
Railway
No. 2.

9. Railway No. 2 shall for the purposes of tolls rates and charges and all other purposes be part of the undertaking of the company constructing the same.

Extension
of working
agreement
between
Company
and Dum-
bartonshire
Company.

10. In the event of Railway No. 2 being constructed by the Dumbartonshire Company the same shall be constructed by them in accordance with the requirements of the agreement between the Company and the Dumbartonshire Company set forth in the Second Schedule to and confirmed by the Lanarkshire and Dumbartonshire Railway Act 1891 and all the provisions of that agreement shall so far as applicable extend and apply to Railway No. 2.

Period for
compulsory
purchase of
lands.

11. The powers for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the passing of this Act.

Period for
completion
of works.

12. If the railways and bridge widening by this Act authorised are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Power to
divert por-
tion of canal.

13. The Company may for the purposes of the construction of Railway No. 1 temporarily or permanently divert the Forth and Clyde Canal belonging to them in the manner shown on the deposited plans and sections and may temporarily or permanently stop up and cause to be discontinued as a canal the portion of the existing canal for which such diverted portion of canal is substituted Any such diverted portion of canal shall in all respects be held as part of and be subject to the same provisions as the existing portion of canal for which the same is substituted and any portion of the existing canal permanently stopped up shall remain the property of the Company and may be sold or disposed of by them or appropriated and used for the purposes of Railway No. 1 or other purposes of their undertaking.

Inclinations
of roads.

14. In altering for the purposes of this Act the roads next herein-after mentioned the same may be made of any

inclinations not steeper than the inclinations herein-after prescribed respectively (that is to say):— A.D. 1905.

No. on deposited Plans.	Parish.	Description of Road.	Intended Inclination.
RAILWAY No. 1.			
18	Falkirk - - -	Public - - -	1 in 12
30	Falkirk - - -	Public - - -	1 in 20
50	Falkirk - - -	Public - - -	1 in 20
57	Falkirk - - -	Public - - -	1 in 15
RAILWAY No. 2.			
14	Renfrew - - -	Public - - -	1 in 26

15. The arches of the bridges for carrying the railways over the roads next herein-after mentioned may be of any height and span not less than the height and span herein-after prescribed respectively (that is to say):—

Height and span of bridges.

No. on deposited Plans.	Parish.	Description of Road.	Height.	Span.
RAILWAY No. 1.				
18	Falkirk - - -	Public - - -	Ft. Ins.	Feet
30	Falkirk - - -	Public - - -	15 0	25
50	Falkirk - - -	Public - - -	15 0	25
RAILWAY No. 2.				
5	Renfrew - - -	Public - - -	16 6	60

16. The roadways over the bridges by which the following roads will be carried over the railways herein-after mentioned may be made of such width between the fences thereof as shall be thought fit not being less than the respective widths herein-after prescribed respectively (that is to say):—

Widths of certain roadways.

No. on deposited Plans.	Parish.	Description of Road.	Width of Roadway.
RAILWAY No. 1.			
57	Falkirk - - -	Public - - -	Feet. 25
RAILWAY No. 2.			
14	Renfrew - - -	Public - - -	50

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Power to
take servi-
tudes &c. by
agreement.

17. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Act grant any servitude right or privilege (not being a servitude right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

Lands for ex-
traordinary
purposes.

18. The quantity of land to be acquired by agreement for the extraordinary purposes mentioned in the Railways Clauses Consolidation (Scotland) Act 1845 in connexion with the railways authorised by this Act shall not exceed ten acres in respect of each railway in addition to the lands which the Two Companies or either of them are authorised by this Act to take compulsorily but nothing in that Act or in this Act shall exempt either of the Two Companies from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land so acquired by agreement.

Power to
deviate.

19. Without prejudice to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 incorporated with this Act it shall be lawful in the construction of the railways and works by this Act authorised to deviate from the lines thereof delineated on the deposited plans to any extent within the limits of deviation shown on such plans and to deviate vertically from the levels thereof shown on the deposited sections to any extent not exceeding five feet Provided that in the event of any vertical deviation exceeding two feet in any town village street or land continuously built upon the Company or the Dumbartonshire Company as the case may be shall pay compensation to any persons who may be injuriously affected by such increased deviation.

Owners may
be required
to sell parts
only of cer-
tain proper-
ties.

20. And whereas it may happen that portions only of the houses or other buildings or manufactories shown on the deposited plans may be sufficient for the purposes of this Act and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in any of the properties described in the First Schedule to this Act and

whereof parts only may be required for the purposes of this Act may (if the same can in the opinion of the jury arbiters or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of the premises without material detriment thereto) be required to sell and convey the portions only of the premises so required without the Company or the Dumbartonshire Company as the case may be being obliged or compellable to purchase the whole or any greater portion thereof the Company or the Dumbartonshire Company as the case may be paying for the portions taken by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise. Provided that if in any case in the opinion of the jury arbiters or other authority as aforesaid any such portions cannot be severed from the remainder of such property without material detriment thereto the Company or the Dumbartonshire Company as the case may be may at any time within one month after the date of the final decision of such jury arbiters or other authority withdraw their notice to treat for the portions required by them and thereupon they shall pay to the owners of and other parties interested in the property in respect of any portions of which they have given notice to treat all loss and damage sustained and all costs charges and expenses (as the same shall be taxed as between solicitor and client) reasonably incurred by them in consequence of such notice. Provided also that nothing in this section contained shall be held as determining whether the properties described in the said schedule are or are not subject to the provisions of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

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21. And whereas in order to avoid in the execution and maintenance of any works authorised by this Act injury to the houses and buildings within one hundred feet thereof it may be necessary to underpin or otherwise strengthen the same. Therefore the Company or the Dumbartonshire Company as the case may be at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as herein-after provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

Underpinning or otherwise strengthening houses.

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building

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so intended or so required to be underpinned or otherwise strengthened:

- (2) Each such notice if given by the Company or the Dumbartonshire Company as the case may be shall be served in manner prescribed by section 18 of the Lands Clauses Consolidation (Scotland) Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the principal office of the Company or the Dumbartonshire Company as the case may be:
- (3) If any owner lessee or occupier of any such house or building or the Company or the Dumbartonshire Company as the case may be shall within seven days after the giving of such notice give a counter notice in writing that he or they as the case may be dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to an engineer to be agreed upon or in case of difference to an engineer to be appointed at the instance of either party by the Board of Trade:
- (4) Such referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier he shall prescribe the mode in which the same shall be executed and the Company or the Dumbartonshire Company as the case may be may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Company or the Dumbartonshire Company as the case may be shall be liable to compensate the owners lessees and occupiers of every such house or building for any inconvenience loss or damage which may result to them by reason of the exercise of the powers granted by this enactment:
- (6) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Company or the Dumbartonshire Company as the case may be such underpinning or strengthening shall prove inadequate for the support or protection of the house or building against

further injury arising from the execution or use of the works of the Company or the Dumbartonshire Company then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Company or the Dumbartonshire Company as the case may be shall make compensation to the owners lessees and occupiers of such house or building for such injury provided the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:

- (7) Nothing in this enactment contained nor any dealing with any property in pursuance of this enactment shall relieve the Company or the Dumbartonshire Company as the case may be from the liability to compensate under the Lands Clauses Consolidation (Scotland) Act 1845 or under any other Act:
- (8) Every case of compensation to be ascertained under this enactment shall be ascertained according to the provisions of the Lands Clauses Acts:
- (9) Nothing in this section shall repeal or affect the application of section 90 of the Lands Clauses Consolidation (Scotland) Act 1845.

22.—(1) The running powers and facilities conferred on the North British Company under the Caledonian and Scottish Central Railways Amalgamation Act 1865 shall extend and apply to so much of Railway No. 1 by this Act authorised as shall be situated east of a line drawn due north and south through the point marked "1 mile" on the deposited plan of the said railway.

For protection of North British Company.

(2) The Company shall not take compulsorily for the purpose of Railway No. 2 any lands or property belonging to the North British Company.

23. The running powers and facilities conferred on the North Eastern Railway Company and the Great Northern Railway Company under the Caledonian and Scottish Central Railways Amalgamation Act 1865 shall extend and apply to so much of Railway No. 1 by this Act authorised as shall be situated east of a line drawn due north and south through the point marked "1 mile" on the deposited plan of the said railway.

Extending running powers and facilities of North Eastern and Great Northern Railway Companies.

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Extending
running
powers of
London and
North Western
Railway Com-
pany.

For protec-
tion of cor-
poration of
Glasgow.

24. The running powers conferred on the London and North Western Railway Company under the Caledonian and Scottish Central Railways Amalgamation Act 1865 shall extend and apply to Railway No. 1 by this Act authorised.

25. For the protection of the corporation of the city of Glasgow as such and as acting in execution of the several public and local and personal Acts by which any powers jurisdictions or authorities are conferred on them (in this section called "the corporation") the following provisions shall (unless otherwise agreed upon) have effect and be binding on the Company (that is to say) :—

- (1) At least twenty-one days before the Company commence any works the execution of which would in any way interfere with or affect any of the gas or water pipes tramways electric or telephone wires or other works belonging to the corporation the Company shall give to the corporation notice thereof in writing accompanied by plans sections working drawings and specifications showing the manner in which the said works are to be executed and also showing the means to be employed by the Company not only for protecting the said gas or water pipes tramways electric or telephone wires or other works during the operations of the Company but for making good any injury or damage to or interference with the same respectively which plans sections working drawings and specifications shall be subject to the reasonable approval of the corporation previously to the works of the Company affecting the said gas or water pipes tramways electric or telephone wires or other works being commenced and such works shall be carried out in conformity with the plans sections working drawings and specifications as approved of or settled. Provided always that if the corporation do not within fourteen days after service of such notice on them intimate to the Company their approval or disapproval of the said plans sections working drawings and specifications the Company may thereupon proceed to execute the said works but the corporation shall not be held to have approved of or acquiesced in such plans sections working drawings and specifications :

- (2) The Company shall make the arch of the new bridge for carrying Railway No. 2 authorised by this Act over Dumbarton Road being the road numbered 5 on the deposited plans in the parish of Renfrew of a height not less than sixteen feet six inches from the surface of the road and of such a span that the road will not be less than sixty feet in width: A.D. 1905.
- (3) The corporation may for the purpose of working their tramways by electrical power attach to the girders of the said bridge for carrying the said railway over Dumbarton Road such wires or other apparatus as may be necessary and any such works shall be done to the satisfaction of the Company's engineer:
- (4) The Company shall take such means as may be necessary for preventing and shall prevent water drip from the said bridge for carrying the said railway over the Dumbarton Road upon the carriageway or footpath of the road and the headway of the bridge shall not be deemed to be lessened by any lining or other means adopted by the Company with the approval of the Corporation for the purpose of preventing water drip:
- (5) The Company shall indemnify the corporation for any loss detention or injury sustained by them by reason of the interruption to or interference with the tramways or the traffic thereon in consequence of the construction of the said bridge for carrying the said railway over the Dumbarton Road or in consequence of anything arising from its subsequent maintenance or repair or in consequence of the operations of the Company relating thereto:
- (6) Should it be necessary for the Company to cross interfere with alter or divert any road or street in which any gas water tramway electric or telephone mains pipes cables feeders wires or tubes of the corporation are or may be laid or to interfere with any of the said mains pipes cables feeders wires or tubes the Company shall wherever it is reasonably practicable to do so and if required by the corporation leave not less than three feet of covering from the surface of the road or street over every main

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pipe cable feeder wire or tube so interfered with and in any case where such three feet of covering or more cannot be given the Company shall in every such case be bound to provide at their own expense special protection from injury for such mains pipes cables feeders wires and tubes all to the reasonable satisfaction of the city engineer and the gas water tramway electrical and telephone engineers of the corporation. The Company shall also provide at their own expense and to the reasonable satisfaction of the said engineers all stopcocks scour pipes air valves and other apparatus in connexion with the said mains pipes cables feeders wires or tubes that may be rendered necessary through their operations:

- (7) In the event of the said Railway No. 2 authorised by this Act necessitating the construction of any bridges carrying or intended to carry any road or street over the said railway in or over which the water gas electric tramway or telephone mains pipes cables feeders wires and tubes of the corporation are already laid or in or over which bridges the corporation may deem it necessary to lay any new or additional water gas electric tramway and telephone mains pipes cables feeders wires and tubes the Company shall at their own expense be bound to provide such suitable accommodation in any such bridges as to admit of the existing water gas electric tramway and telephone mains pipes cables feeders wires and tubes being laid and maintained in or over such bridges and of any new or additional water gas electric tramway or telephone mains pipes cables feeders wires and tubes which the corporation may deem it necessary to provide as aforesaid being laid or maintained in or over the same:
- (8) Where any of the works authorised by this Act involves an alteration or diversion in respect of any of the said mains pipes cables feeders wires or tubes or any apparatus connected therewith the corporation shall have the option themselves of executing the works necessary for such alteration or diversion at the expense of the Company and the Company shall be liable for any injury or loss sustained by the

corporation by reason of such alteration or diversion except where the same may be caused by the fault or negligence of the corporation: A.D. 1905.

- (9) If at any time any accident shall occur to any gas water tramway electric or telephone main pipe cable feeder wire or tube or any apparatus connected therewith at or near any point where such main pipe cable feeder wire tube or apparatus is crossed or otherwise affected by the Company in respect of which accident it may be necessary to interfere with any of the works of the Company it shall be lawful for the corporation immediately to repair the said main pipe cable feeder wire tube or apparatus in such manner as to occasion as little delay and inconvenience as may be to the Company Provided always that the corporation shall either before or as soon as practicable after the commencement of such repair give notice thereof to the Company Provided also that it shall be lawful for the Company on the occurrence of any such accident to repair any damage that may be caused to their works so far as the same can be repaired without interrupting the repair of any such main pipe cable feeder wire tube or apparatus:
- (10) In addition to the plans sections working drawings and specifications provided for in subsection (1) of this section plans sections working drawings and specifications of all special works for the protection of the said mains pipes cables feeders wires and tubes to be provided or constructed by the Company as aforesaid shall be submitted to the city engineer and the gas water tramway electrical and telephone engineers of the corporation respectively for their approval at least twenty-one days before such works alterations or additions are commenced and the said engineers shall be bound within the said period of twenty-one days to intimate to the Company or their engineer their approval or disapproval thereof:
- (11) The special provisions herein contained for the protection of the corporation shall not be deemed to supersede or dispense with the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 sections 18 to 23 both inclusive but those provisions

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respectively except in so far as they may be inconsistent with any of the special provisions herein contained shall be and remain in full force and effect. Provided also that the provisions of sections 18 to 23 both inclusive of the Railways Clauses Consolidation (Scotland) Act 1845 shall apply to all mains pipes cables feeders wires and tubes and any apparatus connected therewith used for the supply of electricity tramways and telephones in the same manner and to the same extent as they apply to all mains pipes and apparatus used for the supply of water and gas :

- (12) Any difference between the corporation and the Company or between the engineer of the corporation and the engineer of the Company arising out of any of the provisions of this section shall be referred to the determination of an arbiter to be mutually agreed upon or failing such agreement to be appointed on the application of the Company or of the corporation by the Board of Trade. The costs of and incidental to the reference shall be paid by the Company. If any question of law should arise in the course of such arbitration the arbiter shall have power at the request of either party to state a case for the opinion of the Court of Session and the court shall determine such question.

For protection of corporation of Aberdeen.

26. For the protection of the lord provost magistrates and town council of the city and royal burgh of Aberdeen (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed upon have effect and be binding on the Company (that is to say):—

- (1) At least twenty-one days before the Company commence any works in connexion with the widening on either side thereof of the bridge carrying the Company's line over Polmuir Road at or near Ferryhill Junction the execution of which would in any way interfere with or affect the said road or the sewers drains gas or water pipes or other works under the charge of or belonging to the corporation the Company shall give to the corporation notice thereof in writing accompanied by plans sections working drawings and specifications showing the manner in

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which the said works are to be executed and the means to be employed by the Company not only for protecting the said road sewers drains gas or water pipes electric wires or other works during the operations of the Company but also for making good any injury or damage to or interference with the same respectively which plans sections working drawings and specifications shall be subject to the approval of the corporation previously to the intended works of the Company affecting the said road sewers drains gas or water pipes or other works being commenced and such works shall be carried out in conformity with the plans as approved of or settled Provided always that if the corporation do not within fourteen days after service of such notice intimate to the Company their approval or disapproval of the said plans sections working drawings and specifications the Company may thereupon proceed to execute the said works :

(2) The Company shall not except with the consent of the corporation interfere with stop up or occupy for a longer period than three months any one portion of Polmuir Road and during such period the Company shall preserve or provide a roadway for foot passengers but not for vehicular traffic :

(3) In case the Company interfere with or stop up temporarily any portion of Polmuir Road they shall to the reasonable satisfaction of the corporation—

(A) Restore the portion of the road interfered with by the said works ;

(B) Cause the restored portion of the road to be maintained till properly consolidated such period of maintenance not to exceed twelve months ;

(C) Make good the footways paving and metalling of the road so far as interfered with and wherever necessary cause the road to be re-paved or re-metalled over its entire width ;

(D) Provide and maintain all requisite temporary communications and accesses for foot passengers to and from the premises in the road while so interfered with :

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- (4) The clear span and headway of the widening or widenings of the existing bridge shall not be less than twenty-five feet and fifteen feet respectively and the length of road to be covered by the existing bridge and such widening or widenings measured along the centre line of the road shall not be more than two hundred feet :
- (5) In the construction of the widening or widenings of the existing bridge the abutments on both sides of the road shall be erected according to the line shown in red on the plan signed in duplicate by the Right Honourable James William Lowther the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (hereinafter called "the signed plan") one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Office of the Clerk of the Parliaments in the House of Lords and the existing road at the east end of the bridge shall be altered and diverted on the north side thereof according to the line shown in blue on the signed plan :
- (6) In carrying out the said works the Company shall not alter or interfere with the main sewer belonging to the corporation in Polmuir Road and shall make adequate provision for the protection of the said sewer :
- (7)—(A) The Company shall face and for ever thereafter maintain in a clean condition the walls forming the abutments of the existing and widened bridge with white enamelled bricks or tiles and shall paint as often as necessary the soffits thereof white ;
- (B) The Company shall take such means as may be necessary for preventing and shall prevent water drip from the existing and widened bridge upon the carriageway and footpaths of the road and the headway of the existing and widened bridge shall not be deemed to be lessened by any lining or other means adopted by the Company with the approval of the corporation for the purpose of preventing water drip :

- (8) The corporation shall subject to the approval of the engineer of the Company be entitled to attach to the underside of the existing and widened bridge such wires as may be required in connexion with the working of the corporation tramways or the electric supply of the city: A.D. 1905.
- (9) The Company shall repay the corporation all costs and expenses of altering or relaying any sewers drains gas or water pipes which may be necessary by reason of the exercise by the Company of the powers in this Act contained with reference to the widening of the said bridge:
- (10) Where any part of the property to be acquired by the Company under the powers of this Act adjoins or fronts Polmuir Road the Company shall after the acquisition of such property be under all the statutory obligations of an owner of property fronting or abutting on the said road so far as not inconsistent with the powers conferred upon the Company for the use of such property for railway purposes:
- (11) If the corporation and the Company shall differ as to any plans sections working drawings or specifications which under the provisions herein-before contained are to be delivered by the Company to the corporation or as to the mode of carrying out the same or as to any other matter or thing arising out of the said plans sections working drawings or specifications or any of the provisions of this section every such difference shall on the application of the Company or of the corporation be referred to the determination of an arbiter to be mutually agreed upon by the corporation and the Company and failing such agreement to be appointed on the requisition of either of them by the Board of Trade.

27. For the protection of the county council of the county of Renfrew and the district committee of the first or upper district of that county (who are in this section included in the expression "the county council") the following provisions shall unless otherwise agreed have effect and be binding on the Company in connexion with the Railway No. 2 by this Act authorised notwithstanding anything in this Act or in the Acts

For protection of county authorities of Renfrewshire.

A.D. 1905. — incorporated herewith contained or shown on the deposited plans and sections (that is to say):—

(1) The Company shall not in the construction of the said railway across the Road No. 5 on the deposited plans in the parish of Renfrew known as the Yoker or Dumbarton Road deviate from the centre line thereof as shown on the deposited plans except with the consent of the county council which consent shall not be unreasonably withheld:

(2) The Railway No. 2 shall be carried over the Dumbarton Road on a bridge having a clear headway between the abutments of not less than sixteen feet six inches above the level of the centre of the road the abutments shall be constructed and maintained not less than thirty feet measured on the square from the centre of the road on each side and at such a distance apart and the bridge shall be of such a span as to leave a clear roadway of at least sixty feet wide throughout. The wing walls and extensions thereof in connexion with the bridge shall also be constructed and maintained at a distance of not less than thirty feet from the respective centres of the said road and the roads Number 6 on the deposited plans in the said parish of Renfrew known as the Station Road and Number 7 on the said deposited plans in the said parish of Renfrew known as the Anniesland Road and such wing walls and extensions thereof shall be constructed and maintained so as to prevent encroachment by the railway embankments within thirty feet of the centres of any of the said roads and the Company shall construct along the said walls and abutments suitable footpaths not less than ten feet wide with proper kerbs gutters gullies and water channels. The said bridge shall be made and thereafter maintained so far as practicable watertight and the Company shall adopt the best practicable means for preventing water dripping from the bridge on the footpaths and for that purpose shall fit up and thereafter maintain in good order corrugated iron linings over the footpaths to intercept the drip with sufficient rhones and downthrows to carry off the water and the headway of the bridge shall

not be deemed to be lessened by any lining or other means adopted by the Company with the approval of the county council for the purpose of preventing water drip : A.D. 1905.
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- (3) The construction of the bridge railway and other works shall be so carried on as not materially to interfere with the traffic on the said roads or in the event of it being found impracticable to construct the same without such interference the Company shall before commencing any works provide and maintain a good and sufficient substitute road or roads for the accommodation of the whole of the traffic to the reasonable satisfaction of the county council until the roads interfered with are re-opened for traffic :
- (4) In constructing the said bridge railway and other works the Company shall not interfere with or injuriously affect any pipes sewers conduits or culverts in any of the said roads or the accesses thereto unless such interference be found necessary and in that event the Company before any such interference is commenced shall provide efficient substitutes to the reasonable satisfaction of the county council The Company shall so construct their railway and other works as not to interfere with the existing conduit or culvert in and crossing the Dumbarton Road or the outlet therefrom unless such interference be found necessary in which case the Company may divert the said conduit or culvert or otherwise provide an efficient substitute to the reasonable satisfaction of the county council and the said railway and other works and any deviated or substituted conduit or culvert shall be so constructed as to permit of free access being had thereto where the same passes under the said railway and other works for cleansing and repairs :
- (5) The Company shall so construct their railway and works as not to interfere with the construction of the east intercepting sewer about to be laid by the county council in connexion with the Glasgow sewage purification scheme in the roads numbered 6 and 7 on the deposited plans in the said parish of Renfrew :

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(6) In constructing the alteration of the road numbered 14 on the said deposited plans in the said parish of Renfrew known as the Garscadden Road from its junction with the Yoker Road northwards so far as the level thereof is shown on the deposited plans as altered the Company shall make the same of a uniform width of not less than fifty feet and the bridge by which the said road is to be carried over the said railway shall be not less than fifty feet wide between the parapets. The said road as altered shall be constructed with a uniform gradient not steeper than one in twenty-six running sweetly into the Yoker Road on the south side of the bridge and with a uniform gradient nowhere steeper than one in twenty-eight on the north side of the bridge between that bridge and the northmost limit of alteration of said road shown on the deposited plans. The altered road shall be constructed in a thoroughly substantial manner with a footpath ten feet wide along the west side thereof and with good and sufficient kerbs gutters gullies and drains to carry off the surface water. The Company shall also lay in or along the Garscadden Road a sewer with a capacity equal to a twenty-four inch diameter pipe sewer with convenient accesses and manholes from the intercepting sewer to be formed by the county council in the Yoker Road at its junction with Garscadden Road to the termination of the widening by the Company of Garscadden Road on a gradient not flatter than one in four hundred or such other gradient as failing agreement may be determined by the arbiter as after mentioned and the said pipe sewer shall on completion be a public sewer. The alterations on the Garscadden Road shall be carried out so as not to materially interfere with the traffic but in the event of the Company finding it impracticable to carry out the same without such interference they shall before commencing such interference provide and maintain a good and sufficient substitute road until the altered road is reopened for traffic and shall during their operations keep the road or substitute road as the case may be sufficiently lighted to the satisfaction

of the county council and shall restore the lamps pipes and other lighting appliances or the equivalent thereof along with two additional lamps of the same description as those now in use with the requisite fittings and connexions and shall leave the whole in good condition and working order and properly spaced all to the reasonable satisfaction of the county council: A.D. 1905.

- (7) The works of the Company authorised by this Act and referred to in this section and all the works of the Company connected therewith so far as they interfere with any roads bridges sewers or other property belonging to or under the jurisdiction of the county council shall be executed to the reasonable satisfaction of the county council and according to plans sections and specifications to be submitted to and approved by them and when commenced shall be carried on and completed without interruption and with all reasonable despatch :
- (8) The Company shall pay to the county council the costs and expenses which the county council may reasonably incur or be put to in superintending and inspecting the works authorised by this Act so far as involving interference with or affecting the roads bridges sewers or other property under the jurisdiction of the county council :
- (9) If any difference shall arise between the county council and the Company under this section the same shall be referred to and determined by an engineer to be agreed on or failing agreement to be appointed by the Board of Trade on the application of the Company or the county council and the cost of such reference shall be borne by the Company unless the arbiter shall otherwise direct on the ground that the claims of the county council in the reference were unreasonable.

28. The agreement between Robert Barr Stewart factor and commissioner for and on behalf of James William Gordon Oswald of Scotstoun of the first part and the Company and the Dumbartonshire Company of the second part set forth in the Second Schedule to this Act is hereby sanctioned and confirmed and made binding on the parties thereto.

Confirmation
of agreement
with James
William Gor-
don Oswald,

A.D. 1905.

Penalty imposed unless railways opened within time limited.

29. If within the period limited by this Act either of the railways by this Act authorised shall not be completed then the Company as regards Railway No. 1 and the Company or the Dumbartonshire Company if the last-mentioned company undertake the construction thereof as regards Railway No. 2 shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the railway and the said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854. And every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided. But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company or the Dumbartonshire Company as the case may be were prevented from completing or opening the railway by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application of penalty.

30. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property for the railway conferred by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland

may seem fit And if no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the company who had incurred the penalty is insolvent or the railway or any part thereof has been abandoned be paid or transferred to such judicial factor or be applied in the discretion of the court as part of the assets of such company for the benefit of the creditors thereof and subject to such application shall be repaid to such company.

A.D. 1905.

31.—(1) On payment to the North British Company by the company constructing Railway No. 2 of one half of the cost and interest thereon mentioned in section 13 of the Order of 1903 of the portion of Railway No. 7 authorised by that Order from the point of junction therewith of Railway No. 2 to the point where the said Railway No. 7 enters or will enter the property of the Trustees of the Clyde Navigation on the west side of the Green Road at Yoker in the parish and county of Renfrew including in such cost and interest one half of the cost and interest thereon of all junctions sidings works lands buildings and property in connexion with the said portion of Railway No. 7 and any branch or siding connexion from the said portion of Railway No. 7 into the works and premises of the Clyde Valley Electrical Power Company the said portion of Railway No. 7 and others and all powers rights and privileges (including the power to levy and recover tolls rates fares and charges) vested in or exerciseable by the North British Company in reference to the said portion of Railway No. 7 and others shall by virtue of this Act be transferred to and vested in the North British Company and the Company or the Dumbartonshire Company as the case may be jointly and equally subject to the terms and conditions set forth in section 13 of the Order of 1903 and in this Act in relation thereto.

Transfer of
joint interest
in Clyde-
bank Dock
Branch to
Company or
Dumbarton-
shire Com-
pany.

(2) In the event of the said portion of Railway No. 7 and others being transferred to and vested in the North British Company and the Dumbartonshire Company jointly and equally under the provisions of this section the traffic of the Dumbartonshire Company on the said joint portion of Railway No. 7 shall during the continuance of the agreement between

A.D. 1905

the Company and the Dumbartonshire Company set forth in the Second Schedule to and confirmed by the Lanarkshire and Dumbartonshire Railway Act 1891 be worked by the Company and all the provisions of that agreement shall so far as applicable extend and apply to the said joint portion of Railway No. 7 so far as the Dumbartonshire Company are interested therein.

(3) The provisions of section 13 of the Order of 1903 with regard to the acquisition by the Company or the Dumbartonshire Company of a joint and equal interest in any extension by the North British Company of the said portion of Railway No. 7 into the property of the Trustees of the Clyde Navigation beyond the west side of the said Green Road shall remain in force and the Company constructing Railway No. 2 may apply to the Secretary for Scotland for a Provisional Order to authorise them to acquire such a joint and equal interest therein at any time in the event of such extension being proceeded with.

Extension of time for purchase of lands for and completion of Railway No. 1 authorised by Act of 1900.

32. The powers for the compulsory purchase and taking of lands granted by the Caledonian Railway Act 1900 in respect of Railway No. 1 authorised by that Act as extended by the Caledonian Railway Order 1903 are hereby further extended and may be exercised by the Company at any time within but shall cease after the expiration of two years from the thirtieth day of June one thousand nine hundred and five and the period limited by the same Act for the completion of the said railway is hereby extended for three years from the expiration thereof that is until the sixth day of August one thousand nine hundred and eleven.

Extending periods for completion of certain railways and works.

33. The periods limited for the completion of the railways and works hereunder respectively mentioned are hereby respectively extended as follows (that is to say):—

The period limited by the Caledonian Railway Act 1897 for the completion of the Railways Nos. 1 2 3 4 and 5 authorised by that Act as extended by the Caledonian Railway Act 1901 is extended for three years from the expiration of such period that is until the fifteenth day of July one thousand nine hundred and eight:

The period limited by the Lanarkshire and Ayrshire Railway Act 1897 for the completion of the Railways Nos. 3 4 7 8 9 10 and 11 authorised by that Act as extended by

the Caledonian Railway Act 1901 is extended for three years from the expiration of such period that is until the fifteenth day of July one thousand nine hundred and eight: A.D. 1905.

The period limited by the Lochearnhead St. Fillans and Comrie Railway Act 1897 for the completion of the railway authorised by that Act as extended by the Caledonian Railway Act 1901 is extended for three years from the expiration of such period that is until the sixth day of August one thousand nine hundred and eight except as regards that portion thereof which was abandoned by the Caledonian Railway (General Powers) Act 1899:

The period limited by the Caledonian Railway Act 1900 for the completion of Railway No. 2 the widening of the bridge at Flemington Station and the lengthening of the Dobbies Loan Bridge authorised by that Act is extended for three years from the expiration of such period that is until the sixth day of August one thousand nine hundred and eight:

And the sections of the above Acts which relate to the periods for the completion of the said railways and works respectively and to the penalties exigible in the event of the same not being completed within the said respective periods shall be read and construed as if the respective periods for such completion referred to in those sections did not expire until the expiration of the extended periods hereby limited.

34.—(1) It shall not be lawful for either of the Two Companies under the powers of this Act or under the powers of any former Act extended by this Act to purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December next before the passing of this Act or of the former Act by which the purchase or acquisition was originally authorised were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction on taking houses of labouring class.

(2) If either of the Two Companies acquire or appropriate any house or houses in contravention of the foregoing provisions

A.D. 1905. they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the Court of Session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Transfer of
Leitir Mhor
Pier to Oban
Company.

35.—(1) Subject to the provisions of this Act the pier approach road and works at Leitir Mhor in the parish of Lismore and Appin in the county of Argyll authorised by the Order of 1901 and all lands buildings works and property belonging to the Quarrier Company Limited in connexion therewith and all rights powers privileges and authorities (including the power of levying rates dues and charges) conferred on and exerciseable by the Quarrier Company Limited by or under the Order of 1901 as the undertakers under such Order shall from and after the passing of this Act be by virtue of this Act transferred to and vested in the Oban Company as part of their undertaking and may be held and exercised by that company subject to all duties and obligations affecting the same.

(2) From and after such transfer and vesting sections 33 to 36 of the Order of 1901 shall be repealed.

(3) The consideration for the transfer and vesting shall be—

(A) The payment by the Oban Company to the Quarrier Company Limited of the money expended by the Quarrier Company Limited upon the construction of the said pier road and works with interest at five per centum per annum upon such money from

the date of the expenditure thereof until such payment: A.D. 1905.

(B) The payment by the Oban Company to the Quarrier Company Limited of the costs charges and expenses incurred by the Quarrier Company Limited in obtaining the Order of 1901 with interest thereon at the rate aforesaid from the date of the payment by the Quarrier Company Limited of such costs charges and expenses until payment thereof by the Oban Company:

(c) The payment by the Oban Company to the Quarrier Company Limited in respect of the land belonging to them on which the said pier road and works forming part of the pier undertaking are situate either by way of a principal sum or (if so agreed between the companies) by way of an annual feu duty of such amount in either case as may be agreed between the Quarrier Company Limited and the Oban Company or in default of agreement as may be settled by arbitration under the Lands Clauses Acts and in the event of the payment being by way of an annual feu duty the provisions of the Lands Clauses Consolidation (Scotland) Act 1845 and any Act amending the same in respect of conveyances in consideration of feu duties shall apply to such land.

36. The provisions with respect to the maintenance and working by the Company of the other portions of the undertaking of the Oban Company contained in the Callander and Oban Railway Act 1865 as altered and modified by the Callander and Oban Railway (Abandonment &c.) Act 1870 and the several agreements scheduled to and confirmed by those Acts shall subject to the provisions of this Act apply and extend to the Leitir Mhor Pier undertaking by this Act transferred to and vested in the Oban Company as if the same had formed part of the undertaking authorised by the first of such Acts. Pier to be maintained and worked by Company.

37. The Company may from time to time subject to the provisions of Part II. of the Companies Clauses Act 1863 as amended by any subsequent Act raise by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or Power for Company to raise additional capital.

A.D. 1905. more of those modes respectively any additional capital not exceeding in nominal amount the following (that is to say):—

- (A) For the purposes of their subscription herein-after authorised to the undertaking of the Dumbartonshire Company if that company construct Railway No. 2 the sum of forty-two thousand one hundred and fifty pounds;
- (B) For the purposes of their subscription herein-after authorised to the undertaking of the Oban Company the sum of one hundred and fifty thousand pounds;
- (C) For the general purposes of this Act the sum of one hundred and sixty-five thousand seven hundred and fifty pounds if the Company construct Railway No. 2 but if such railway is constructed by the Dumbartonshire Company the sum of eighty-one thousand four hundred and fifty pounds;

but the Company shall not create and issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Power for
Dumbarton-
shire Com-
pany to raise
additional
capital.

38. The Dumbartonshire Company may if they construct Railway No. 2 from time to time subject to the provisions of Part II. of the Companies Clauses Act 1863 as amended by any subsequent Act raise for the purposes of this Act by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively additional capital not exceeding in nominal amount the sum of eighty-four thousand three hundred pounds but the Dumbartonshire Company shall not create and issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Power for
Oban Com-
pany to raise
additional
capital.

39. The Oban Company may for the purposes of this Act and towards meeting expenditure incurred on works for which their existing authorised capital is insufficient from time to time subject to the provisions of Part II. of the Companies Clauses Act 1863 as amended by any subsequent Act raise by the creation and issue at their option of new ordinary shares

A.D. 1905.

or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively additional capital not exceeding in nominal amount the sum of two hundred and twenty-five thousand pounds but the Oban Company shall not create and issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

40. If in any year ending on the thirty-first day of January there are not profits available for the payment of the full amount of preferential dividend or interest for that year on any new preference shares or stock issued by any of the Three Companies under this Act no part of the deficiency shall be made good out of the profits of any subsequent year or out of any other funds of the Companies.

Dividend on preference shares not cumulative.

41. Except as by this Act otherwise provided the capital in new shares or stock created by any of the Three Companies under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of those Companies respectively of the same class or description and the new shares or stock were shares or stock in such capital.

Except as otherwise provided new shares or stock to be subject to same incidents as other shares or stock.

42. The capital in new shares or stock created under this Act shall form part of the capital of the Three Companies respectively.

And to form part of capital of Companies.

43. Every person who becomes entitled to new shares or stock in the capital by this Act authorised to be raised shall in respect of the same be a holder of shares or stock in the Company creating the capital and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

Dividends on new shares or stock.

44. Each holder of new shares or stock in the capital by this Act authorised to be raised shall be entitled to the same number of votes in respect thereof which the possession of an equal nominal amount of the existing capital stock of the Company creating the capital of the same class or description would

Votes in respect of new shares or stock.

A.D. 1905. — have conferred upon him Provided that except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock to which a preferential dividend shall be assigned.

New shares or stock raised under this Act and other Acts or Orders may be of same class.

45. Subject to the provisions of any Act or Order already passed by which any of the Three Companies are authorised to raise capital by new shares or stock and to the provisions of this Act and of any other Act or Order passed or made in the present session of Parliament whether before or after the passing of this Act by which any of the Three Companies may be authorised to raise capital by new shares or stock the said Companies may respectively if they think fit raise by the creation and issue of new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Acts or Orders and this Act respectively authorised to raise by the creation and issue of new shares or stock.

Preference capital of Oban Company convertible into ordinary capital.

46. The Oban Company may if they think fit attach to all or any preference shares or preference stock which they may create under the powers of this Act the condition that the shares or stock shall at any time within such period as shall be specified on the certificate of the share or stock and if no time be specified then at any time thereafter be convertible at the option of the holder of the share or stock into such an amount of ordinary shares or stock of the Oban Company as shall be fixed and stated in the certificate and which shall be after the same rate for all the preference shares and preference stock to which the condition shall be attached and the Oban Company shall when required by the holder of any such preference shares or stock within the period (if any) so specified give in exchange for the same the amount of ordinary shares or stock so fixed and stated on the certificate and shall from time to time create such an additional amount of ordinary shares or stock in their undertaking as shall be necessary to give effect to this enactment and all preference shares or preference stock for which such ordinary shares or stock shall be given shall be cancelled.

Power for Company to borrow.

47. The Company may in respect of the additional capital which they are herein-before authorised to raise for the general purposes of this Act from time to time borrow on mortgage of their undertaking any sum or sums not exceeding in nominal amount the following (that is to say) If the Company construct

Railway No. 2 the sum of fifty-five thousand two hundred and fifty pounds but if such railway is constructed by the Dumbartonshire Company then the sum of twenty-seven thousand one hundred and fifty pounds but no part of any such sum shall be borrowed until shares or stock or shares and stock for the whole of the additional capital of one hundred and sixty-five thousand seven hundred and fifty pounds or eighty-one thousand four hundred and fifty pounds herein-before authorised to be raised by them for the general purposes of this Act as the case may be are issued and accepted and one half of such capital is paid up and the Company has proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares or stock or shares and stock for the whole of such capital have been issued and accepted and that one half of such capital has been paid up and that not less than one-fifth part of the amount of each separate share and the whole amount of the stock in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares or stock or shares and stock as the case may be were issued and accepted and such one half of such capital was paid up bonâ fide and that such shares or stock or shares and stock as the case may be are held by the persons to whom the same were issued or their executors administrators successors or assignees and also in so far as the said portion of capital is raised by shares that such persons or their executors administrators successors or assignees are legally liable for the same and upon production to such sheriff of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

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48. The Dumbartonshire Company if they construct Railway No. 2 may in respect of the additional capital of eighty-four thousand three hundred pounds which they are herein-before authorised to raise from time to time borrow on mortgage of their undertaking any sum or sums not exceeding in nominal amount the sum of twenty-eight thousand one hundred pounds but no part of any such sum shall be borrowed until shares or stock or shares and stock for the whole of the said additional capital are issued and accepted and one half thereof is paid up and until the Dumbartonshire Company has proved to the sheriff who is to certify under the forty-second section of the

Power for
Dumbarton-
shire Com-
pany to
borrow.

A.D. 1905. Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares or stock or shares and stock for the whole of such capital have been issued and accepted and that one half of such capital has been paid up and that not less than one-fifth part of the amount of each separate share and the whole amount of the stock in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares or stock or shares and stock as the case may be were issued and accepted and such one half of such capital was paid up bonâ fide and that such shares or stock or shares and stock as the case may be are held by the persons to whom the same were issued or their executors administrators successors or assignees and also in so far as the said portion of capital is raised by shares that such persons or their executors administrators successors or assignees are legally liable for the same and upon production to such sheriff of the books of the Dumbartonshire Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Power for
Oban Com-
pany to
borrow.

49. The Oban Company may in respect of the additional capital of two hundred and twenty-five thousand pounds which they are herein-before authorised to raise from time to time borrow on mortgage of their undertaking any sum or sums not exceeding in nominal amount the sum of seventy-five thousand pounds in manner following that is to say They may borrow a sum of twenty-five thousand pounds in respect of each entire sum of seventy-five thousand pounds of the said capital but no part of any such sum shall be borrowed until shares or stock or shares and stock for the whole of the portion of the said capital in respect of which the borrowing powers are to be exercised are issued and accepted and one half of such portion of capital is paid up and the Oban Company has proved to the sheriff who is to certify under the forty-second section of the Companies Clauses Consolidation (Scotland) Act 1845 before he so certifies that shares or stock or shares and stock for the whole of such portion of capital have been issued and accepted and that one half of such portion of capital has been paid up and that not less than one-fifth part of the amount of each separate share and the whole amount of the stock in the said portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such shares or stock or

shares and stock as the case may be were issued and accepted and such one half of the said portion of capital was paid up bonâ fide and that such shares or stock or shares and stock as the case may be are held by the persons to whom the same were issued or their executors administrators successors or assignees and also in so far as the said portion of capital is raised by shares that such persons or their executors administrators successors or assignees are legally liable for the same and upon production to such sheriff of the books of the Oban Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

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50. The mortgagees of any of the Three Companies respectively under this or any previous Act or Order may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a judicial factor In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall be not less than ten thousand pounds in the whole.

Arrears may be enforced by appointment of a judicial factor.

51. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by any subsequent Act but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Company shall rank pari passu with the interest of all mortgages at any time after the passing of this Act granted by the Company and shall have priority over all principal money secured by such mortgages.

Power for Company to create debenture stock.

52. The Dumbartonshire Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by any subsequent Act and section 22 of the Lanarkshire and Dumbartonshire Railway Act 1891.

Power for Dumbartonshire Company to create debenture stock.

53. The Oban Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 as amended by any subsequent Act and notwithstanding anything in any previous Act relating to the Oban Company the interest of all debenture stock created and issued by the Oban Company under this Act shall rank in accordance with the provisions of the said Act of 1863.

Power for Oban Company to create debenture stock.

A.D. 1905.

Existing
mortgages
to have
priority.

54. All mortgages granted by any of the Three Companies before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts or Orders under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by any of such Companies.

Application
of moneys.

55. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to purposes to which capital is properly applicable.

Power to
apply to pur-
poses of Act
funds not
required for
other pur-
poses.

56. Any of the Three Companies may apply towards any of the purposes authorised by this Act to which capital is properly applicable any capital or funds belonging to or authorised to be raised by them respectively and which may not be required for the purposes for which the same were authorised to be raised or directed to be applied.

Agreement
scheduled to
Lanarkshire
and Dum-
bartonshire
Railway Act
1891 to
apply to
additional
capital.

57. Article No. 10 of the agreement entered into between the Dumbartonshire Company and the Company set forth in the Second Schedule to and confirmed by the Lanarkshire and Dumbartonshire Railway Act 1891 shall apply and extend to the additional capital by this Act authorised to be raised by the Dumbartonshire Company in the same manner and to the same extent as if such additional capital had formed part of the capital referred to in the said agreement and had been authorised by the said Act of 1891.

Public bur-
dens &c. and
interest on
borrowed
money to be
a first charge
on receipts
of Oban
Company.

58. Subject to payment of all public and parish burdens including poor rates county rates prison assessments and taxes generally that may be chargeable upon the undertaking of the Oban Company and to all payments (if any) to be made for land held or which may be held by the Oban Company in feu and all annual and other allowances to tenants (if any) and subject as respects the interest on any money borrowed by the Oban Company under the powers of any other Act or Order relating to their undertaking to the charges created by the respective Acts or Orders under which such money was borrowed the interest on all money which may be borrowed by the Oban Company under the authority of this Act either on mortgage or by debenture stock (but so that the aggregate amount on which such interest is payable shall in no case and

at no time exceed the amount by this Act authorised to be borrowed by the Oban Company) shall form a first charge on and be paid out of the gross amount of money earned realised and levied on the undertaking of the Oban Company.

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59. The Company may with the authority of three-fourths of the votes of the shareholders of the Company present in person or by proxy at any general meeting specially convened for the purpose from time to time subscribe (in addition to the sums which they have already subscribed or are by any other Act or Order authorised to subscribe) any sum or sums which they think fit towards the undertakings of the Dumbartonshire Company and of the Oban Company respectively not exceeding the following viz.:—

Power to
Company to
make further
subscriptions
to undertak-
ings of Dum-
bartonshire
and Oban
Companies.

In the case of the Dumbartonshire Company if they construct Railway No. 2 the sum of forty-two thousand one hundred and fifty pounds;

In the case of the Oban Company the sum of one hundred and fifty thousand pounds;

and the Company may apply in or towards payment of any such subscription any moneys which they are already authorised to raise and which may not be required by them for the purposes of their undertaking and any moneys which they are by this Act authorised to raise and shall in respect of the sums to be subscribed and the corresponding shares or stock in the Dumbartonshire Company and the Oban Company respectively to be held by them have all the powers rights and privileges (except in regard to voting at general meetings which shall be as hereinafter provided) and be subject to all the obligations and liabilities of proprietors of ordinary shares or stock or preference shares or stock as the case may be in the Dumbartonshire Company and the Oban Company respectively. Provided that the Company shall not sell dispose of or transfer any of the shares or stock for which they may subscribe as aforesaid.

60. The Company whilst shareholders of the Dumbartonshire Company may by writing under their common seal from time to time appoint some person to attend any meetings of the Dumbartonshire Company and such person shall have all the privileges and powers attaching to a shareholder of the Dumbartonshire Company at such meetings and may vote thereat in respect of the capital held by the Company.

Votes of
Company at
meetings of
Dumbarton-
shire Com-
pany.

A.D. 1905.

Votes of
Company at
meetings of
Oban Com-
pany.

61. At all meetings of the Oban Company at which the Company are entitled to vote any person appointed by that company for the purpose by writing under their common seal may attend and vote in respect of the shares or stock held by the Company in the undertaking of the Oban Company under the powers of this Act whether he be individually a shareholder of the Oban Company or not but the Company shall not vote in respect of such shares or stock in relation to the election of directors by the shareholders of the Oban Company.

Interest not
to be paid
on calls paid
up.

62. No interest or dividend shall be paid out of any share or loan capital which any of the Three Companies are by this Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent any of the Three Companies from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation (Scotland) Act 1845.

For pro-
tection of
Postmaster-
General.

63. Nothing in this Act shall be deemed to impose upon the Postmaster-General the obligation of transmitting under the provisions of the Telegraph Act 1868 or any agreement between the Postmaster-General and the Company made in pursuance thereof any larger number of telegraphic messages of the Company free of charge than he would have been bound to transmit had this Act not become law.

Saving
rights of
Crown.

64. Nothing in this Act shall affect prejudicially any estate right power privilege or exemption of the King's most Excellent Majesty and in particular nothing herein contained shall authorise the Oban Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose which consent such Commissioners and such Board are hereby respectively authorised to give.

Provision as
to general
Railway
Acts.

65. Nothing in this Act contained shall exempt any of the Three Companies or the railways from the provisions of any general Act relating to railways or the better and more

impartial audit of the accounts of railway companies passed. A.D. 1905.
before or after the passing of this Act or from any future
revision or alteration under the authority of Parliament of the
maximum rates of fares and charges or of the rates for small
parcels authorised by this Act.

66. All costs charges and expenses of and incident to the ^{Costs of}
preparing for obtaining and passing of this Act or otherwise in ^{Act.}
relation thereto shall be paid by the Company.

A D. 1905. SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

HOUSES BUILDINGS OR MANUFACTORIES PARTS ONLY OF WHICH MAY
BE TAKEN.

Parish.	Ncs. on deposited Plans.
RAILWAY No. 1.	
Falkirk - - - - -	43 48 49 51.
RAILWAY No. 2.	
Renfrew - - - - -	2 3 4 27.
BRIDGE WIDENING AT ABERDEEN.	
City parish of Aberdeen - - - - -	1 2.
LAND AT ABERDEEN.	
City parish of Aberdeen - - - - -	1.

THE SECOND SCHEDULE.

AGREEMENT between ROBERT BARR STEWART Writer in Glasgow Factor and Commissioner for and on behalf of JAMES WILLIAM GORDON OSWALD of Scotstoun of the first part (herein-after called "the First Party") and the CALEDONIAN RAILWAY COMPANY incorporated by Act of Parliament and having its principal office in Glasgow and the LANARKSHIRE AND DUMBARTONSHIRE RAILWAY COMPANY incorporated by Act of Parliament and having its principal office in Glasgow of the second part (herein-after called "the Second Party").

WHEREAS the Second Party are at present promoting a Bill in Parliament intituled "A Bill to confer further powers on the Caledonian Railway Company in relation to their undertaking to authorise them or the Lanarkshire and Dumbartonshire Railway Company to construct a

A.D. 1905.

“ railway to connect the Lanarkshire and Dumbartonshire Railway with
“ the Clydebank Dock Branch of the North British Railway Company
“ and to acquire a joint interest in such dock branch to authorise the
“ Callander and Oban Railway Company to raise additional capital and to
“ transfer to them the Leith Mhor Pier and empower them to maintain
“ regulate and charge rates at Achnacloich Pier and for other purposes ”
And whereas the First Party lodged a petition against the said Bill And
whereas negotiations having taken place between the parties the opposition
of the First Party to the Bill was settled on the terms and conditions
herein-after written and the said petition was withdrawn Therefore the
parties hereto have agreed and hereby agree and bind and oblige themselves
as follows :—

First The First Party and his heirs assignees and successors and his
and their feuars and tenants shall have in perpetuity free and unrestricted
right in and the uninterrupted use of the following three areas of ground
and the roads or streets and footpaths thereon as accesses and egresses
to from and between the portions of the estate of Scotstoun lying upon
the north side of the Lanarkshire and Dumbartonshire Railway and the
portions of the said estate lying upon the south side of that railway and
which right shall be exercised in common with the said Lanarkshire and
Dumbartonshire Railway Company and their assignees and successors and
their feuars and tenants and with any person presently entitled to exercise
the same viz. :—

(*First*) All and whole the area of ground delineated and coloured brown
on the plan signed in duplicate by the parties as relative to and of
even date with this agreement extending to three hundred and ninety-
seven one-thousandth parts of an acre imperial measure or thereby
lying within the parish and county of Renfrew and situated between
the Dumbarton Road on the north and the bridge carrying the Lanark-
shire and Dumbartonshire Railway at or near Scotstoun West Railway
Station on the south ;

(*Second*) All and whole the area of ground delineated and coloured
green on the said plan extending to one hundred and seventy-five
one-thousandth parts of an acre imperial measure or thereby lying
within the said parish and county and situated immediately to the
south of the area first above described and partly under the said
bridge and bounded on the south partly by the area of ground third
herein-after described and partly by unfeued parts of the lands of
Scotstoun belonging to the First Party at the central line of the
intended continuation of South Street ;

(*Third*) All and whole the area of ground delineated and coloured
purple on the said plan extending to five hundred and forty-four
one-thousandth parts of an acre imperial measure or thereby lying
within said parish and county and situated on the south side of
the Lanarkshire and Dumbartonshire Railway and between the west
boundary of the southern part of the said area second above described
and the west march of the estate of Scotstoun Provided always but
without prejudice to the First Party's rights under the agreement.

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—

between him and the Lanarkshire and Dumbartonshire Railway Company dated first and eighth August nineteen hundred that the First Party shall not be entitled to use as such the tramways or railway sidings already constructed or that may be constructed by the Second Party on the said three areas of ground or any of them.

Second The First Party and his foresaids shall have right to use without payment therefor the sewers drains and others already laid in the said three areas of ground so far as the Second Party have the right to grant such use and he and they shall have the full rights of frontagers in the said two areas of ground first and third above described and also right to lay use and maintain in over under along and across the said three areas of ground sewers drains gas water and other pipes electric and telephone wires and cables and telegraph wires and cables and the like for the purposes of the First Party as proprietor of the lands of Scotstoun and his foresaids but always so as not to interfere prejudicially with the use of the said areas of ground as roads or streets and the tramways or railway sidings thereon and the said bridge carrying the said Lanarkshire and Dumbartonshire Railway thereover and subject always to the condition that the roads or streets upon the said areas of ground and the said tramways or railway sidings and bridge if affected by such operations shall be by the person or persons carrying out such operations restored to the condition in which they were prior to the exercise of such right. The First Party and his foresaids shall also have power to remove such portions of the footpaths formed on or near the west side of the area first above described and along the south side of the area third above described as may be required to permit of the construction of cross roads streets or lanes leading from the carriageways constructed on the said areas to the adjoining lands of Scotstoun. The said Lanarkshire and Dumbartonshire Railway Company shall maintain in good order and repair in all time coming at their own expense the roads or streets and footpaths constructed on the said three areas of ground first second and third above described. The First Party and his foresaids shall have right to convert the whole or any part of the existing footpath on the south side of the said area third above described into carriageway in order to widen the existing carriageway on that area and in such event he and they shall be bound to substitute on the south side of such widened carriageway a footpath not less in breadth than the said existing footpath but the said Lanarkshire and Dumbartonshire Railway Company shall not be liable for the maintenance of such widened carriageway or substituted footpath in so far as the same shall be situated outwith the said area third above described. The First Party and his foresaids shall have right to widen the existing footpaths on the said areas up to the respective boundaries of these areas.

Third The said Caledonian Railway Company or the Lanarkshire and Dumbartonshire Railway Company as the case may be shall under the provisions of the general statutes take and acquire for the purposes of the construction of their intended railway and works connected therewith (1) the lands delineated and coloured red on the said plan signed as relative to this agreement extending to one acre and four one-tenth parts of an acre

imperial measure or thereby lying within the said parish and county of Renfrew and situated on the south side of Dumbarton Road commencing at or near the junction of that road with Anniesland Road and the area first above described and curving in a south-easterly direction till it reaches the north side of the Lanarkshire and Dumbartonshire Railway and (2) the triangular piece of land delineated and coloured blue on the said plan signed as relative to this agreement extending to one acre imperial measure or thereby lying within the said parish and county of Renfrew and situated on the east side of the said area first above described and lying between the said area coloured red and the said Lanarkshire and Dumbartonshire Railway Without prejudice to the use and occupation for the construction use and maintenance of the said railway of the said two pieces of land last mentioned and coloured red and blue respectively no part thereof shall be used for the erection of public works or manufactories of any kind nor shall the Second Party either by themselves their disponees tenants or others traffic in or sell any spirituous or fermented liquors in any buildings that may be erected on the said lands nor on the said lands themselves nor shall they erect nor place any advertisements or hoardings for advertisements other than for railway advertisements on the said lands or on the buildings thereon nor shall they make or burn any brick or potter work out of or upon the said lands nor shall they deposit any dung excepting for the use of the ground or rubbish thereon nor shall they carry on any business of brewing distilling tanning of leather making of soap candle glue cudbear or vitriol or other chemical operations or preparations or erect any dyeworks glassworks smithies foundries or forges of brass iron or other metals or any oilworks or boneworks which may be considered nauseous or hurtful to the neighbouring feuars or disponees upon the said lands of Scotstoun in whose favour it is hereby declared that this provision shall be constituted as a servitude upon the said lands in the conveyance thereof to be hereafter granted No dwelling-house to be erected on the said triangular piece of land coloured blue shall consist of less than three apartments nor shall any building on said triangular piece of land except buildings for railway purposes other than dwelling-houses be of a greater height than three square storeys above the street level The external walls of any building that may be erected on the said triangular piece of land coloured blue shall be of stone and lime and the roofs covered with slates and any retaining or other wall that may be erected upon the said piece of land coloured blue facing the said area containing three hundred and ninety-seven one-thousandth parts of an acre or thereby first before described and any retaining or other wall facing the unfenced parts of Scotstoun lying on the north-east of the said lands coloured red on the said plan shall be built of square dressed rubble stone with dressed stone coping.

Fourth The said Caledonian Railway Company or the Lanarkshire and Dumbartonshire Railway Company as the case may be shall within six months after the passing of the said Bill into an Act serve notice to treat upon the First Party or his successors for the acquisition of the said lands coloured red and blue on the aforesaid plan and they may also within eighteen months after the passing of the said Bill into an Act serve notice

A.D. 1905. — or notices to treat under the provisions of the general statutes for the acquisition for the construction of the intended railway (if so required) of an additional area or areas of ground not exceeding in the whole twenty feet in width adjoining and extending along the north-east boundary of the land coloured red on the aforesaid plan and adjoining and along the north-east boundary of the existing railway of the Lanarkshire and Dumbartonshire Railway Company but only so far as within the limits of deviation shown on the deposited plans which additional area or areas if the same be acquired shall be subject to the same conditions and restrictions as those applicable to the said area coloured red.

Fifth The amount of the compensation payable for the lands for which notice or notices to treat shall be served and also for severance and injurious affecting and all other claims competent shall forthwith be ascertained and paid by the said Caledonian Railway Company or the Lanarkshire and Dumbartonshire Railway Company as the case may be who shall also settle the claims of the tenants of any part of the First Party's lands to be acquired or interfered with excepting always such tenant's claims for abatement of rent. In ascertaining and fixing such compensation the First Party shall be deemed to have possessed rights of frontage as herein-before mentioned to the said areas containing three hundred and ninety-seven one-thousandth parts of an acre and five hundred and forty-four one-thousandth parts of an acre both above described and the rights of access and egress and others above set forth over the same and over the said area containing one hundred and seventy-five one-thousandth parts of an acre second above described.

Sixth The Second Party shall not nor shall the said Caledonian Railway Company nor the said Lanarkshire and Dumbartonshire Railway Company as the case may be acquire any lands of the First Party shown on the deposited plans and described in the deposited book of reference except the foresaid lands to be taken and acquired as herein-before agreed and provided.

Seventh The Second Party shall not nor shall the said Caledonian Railway Company nor the Lanarkshire and Dumbartonshire Railway Company as the case may be acquire any of the lands numbered 6 (six) in the parish of Renfrew on the deposited plans nor any right therein except for the purpose of carrying the intended Railway No. 2 (two) over those lands by a bridge which bridge and accesses and appurtenances shall be constructed by the Caledonian Railway Company or the Lanarkshire and Dumbartonshire Railway Company as the case may be and shall be of an ornamental design and maintained by them in good external order and repair all to the reasonable satisfaction of the First Party or his successors and such bridge shall not be of less clear height throughout than sixteen feet above the road. The abutments shall be placed at a distance of not less than thirty feet from the central lines of Dumbarton Road and Anniesland Road and of the said road formed on the said area containing three hundred and ninety-seven one-thousandth parts of an acre or thereby first above described respectively.

Eighth The Caledonian Railway Company or the Lanarkshire and Dumbartonshire Railway Company as the case may be shall construct and

thereafter maintain at their own expense in all time coming a sewer of such dimensions and on such lines and levels as may be approved of by and at the sight and to the reasonable satisfaction of the First Party or his successors or his or their surveyor which sewer shall be laid from the eastmost part of the lands which may be taken and acquired as aforesaid and carried along and through the same to join with an intended sewer to be formed by the local authority under the road upon the said area containing three hundred and ninety-seven one-thousandth parts of an acre or thereby first herein-before described and the First Party and his foresaids shall be entitled free of expense to the use of the said sewer first mentioned to be constructed as aforesaid.

Ninth The First Party's right to accommodation works under the general statutes shall be and the same is hereby reserved to him and his successors.

Tenth Nothing herein-before contained or provided for in the Act shall prejudice or affect the right of the First Party to obtain full compensation from the Lanarkshire and Dumbartonshire Railway Company in respect of the notices to treat already served by that Company for and in respect of the said areas containing three hundred and ninety-seven one-thousandth parts of an acre and five hundred and forty-four one-thousandth parts of an acre or thereby first and third above described and the conveyance to be granted by the First Party in favour of the Lanarkshire and Dumbartonshire Railway Company of the said two areas of ground first and third above described shall be granted under burden of the rights and others affecting the same herein-before set forth in favour of the First Party and his foresaids and these rights shall by the said conveyance be created and declared to be real liens and burdens in favour of the First Party and his foresaids upon and affecting the said two areas of ground to be thereby conveyed. The powers conferred by the Act to follow on the said Bill shall be excepted from the warrandice in the said conveyance.

Eleventh This agreement is made subject to the approval of Parliament and shall be scheduled to and confirmed by the Bill and in the event of Parliament making any alterations on the provisions herein-before contained which in the opinion of John Jackson Coats writer in Glasgow are material the First Party shall be entitled to resile from this agreement.

Lastly In respect of the foregoing provisions and conditions in his favour being carried out as in this agreement mentioned the First Party has withdrawn his petition against the said Bill and agrees not to oppose the same further.

In witness whereof these presents written on this and the seven preceding pages by James Hamilton clerk to A. and R. B. Stewart writers in Glasgow are together with the plan annexed hereto and before referred to executed in duplicate as follows viz. that is to say they are sealed with the common seal and subscribed by David Tod and Hugh Brown two of the directors and by John Blackburn secretary of the said Caledonian Railway Company at Glasgow on the twenty-third day of May nineteen hundred and five before these witnesses John Smeaton and John Richmond both clerks to the said Caledonian Railway Company in the

A.D: 1903. secretary's office at Glasgow they are sealed with the common seal and subscribed by James Black Macindoe and the said Hugh Brown two of the directors and by David Reid secretary of the said Lanarkshire and Dumbartonshire Railway Company also at Glasgow on the twenty-fourth day of the said month of May and year last above written before these witnesses James Nesmith and John Reid both clerks to Keyden Strang and Company writers in Glasgow and they are subscribed by the said Robert Barr Stewart also at Glasgow on the said day month and year all last above written before these witnesses James Ritchie and James Hamilton both clerks to the said A. and R. B. Stewart.

JAMES RITCHIE Witness.

JAMES HAMILTON Witness.

R. B. STEWART.

JOHN SMEATON Witness.

JOHN RICHMOND Witness.

Seal of the
Caledonian
Railway
Company.

DAVID TOD Dr.

HUGH BROWN Dr.

J. BLACKBURN Secy.

JAMES NESMITH Witness.

JOHN REID Witness.

Seal of the
Lanarkshire and
Dumbartonshire
Railway
Company.

JAMES B. MACINDOE Dr.

HUGH BROWN Dr.

DAVID REID Secy.

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